



**PLANNING &
DEVELOPMENT**

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles Bloom, AICP, Planning and Development Director
Subject: PLTA-26-2 – An Ordinance Amending 1.3.11 Nonconformities; 1.4.4 Definitions; 1.4.5 Interpretation of Zoning Map; 2.2.7 Special Use Approval; 5.1.2 Zoning Districts Established; and 5.1.4 Use Table; and creating 5.6.10 Regional Entertainment (RE) Overlay District) and 5.7.13 Gaming Center Development Standards and Setting an Effective Date for Compliance.
Date: May 26, 2026

Background:

The item for consideration is a Unified Development Code (UDC) Text Amendment. This is approved by Ordinance. The proposed Governing Body review schedule is as follows:

- Introduction and Referral May 26, 2026
- Public Services Committee June 1, 2026
- Second reading June 8, 2026
- Public Services Committee June 15, 2026
- Third and final reading June 22, 2026

Planning Commission Recommendation:

The Planning Commission considered this item on May 18, 2026. The Commission recommended approval of the text amendment with modifications. The modification is not reflected in the staff report; however, it is reflected in the attached ordinance. The modification was to proposed UDC subsection 5.7.13.a.1 and is reflected in section 9 of the proposed ordinance.

The modification was regarding distance buffers from specific uses and it was modified as follows:

"Be located five hundred (500) feet from any elementary or secondary school, child care center operating ~~as the sole primary use of an independent structure~~ at the time of application, place of worship, or public park or recreation facility. Measurement shall be made in a straight line, without regard to intervening structures or streets, from the nearest exterior wall of the premises or structure housing the off-track betting facility to the nearest exterior wall of the primary structure of a place of worship, school, or child care center, or to the nearest property line of a public park or recreation facility."



This modification did change the ability for two of the seven existing facilities to operate as shown on the table below if the uses wished to expand or were required to re-apply for development approval. If the Governing Body moves forward with the ordinance as recommended by the Planning Commission they will be will not meet the requirements for Special Use approval and would be required to cease operation if a sunset provision for these uses is included in the ordinance. These seven facilities are operated by two operators.

Compliance with 500-foot buffer requirement		
Cheyenne Pari-Mutuel Wagering Facilities	As Presented to the Planning Commission	As Recommended by the Planning Commission
Horse Palace – Swan Ranch 5640 High Plains Road	Yes	Yes
Horse Palace – Downtown 1601 Central Avenue	Yes	Yes
Horse Palace – Dell Range 1802 Dell Range Blvd, Suite 3	Yes	Yes
Derby Club Gaming Parlor – Pershing 1510 E. Pershing Blvd	Yes	No
Derby Club Gaming Parlor – Ridge Road* 3310 Ridge Road	Yes*	No
Wyoming Downs OTB – Cheyenne Plaza 3617 E. Lincolnway	Yes	Yes
Wyoming Downs OTB – Dell Range 1345 Dell Range Blvd	Yes	Yes

*During finalization of the online map staff noted this property is zoned MUB. Staff will present language at the first Public Services Committee meeting to add Gaming Centers as a Special Use in the MUB district subject to the Development Standards of UDC 5.7.13. There was no intent to make any facilities non-compliant with the draft submitted to the Planning Commission.

Staff will present an online map at the Public Services Committee and as requested, meetings of the Governing Body illustrating the buffer requirements and allowed zone districts.

Additional Analysis

Sunset Clause:

Enabling Language:

Section 3 of the proposed ordinance adds a new subsection c.4 to subsection d. This subsection allows a use that was previously approved but is later reclassified as a Special Use through a



Code amendment, to continue operating for a period of time established by the adopting ordinance. After that period expires, the use must obtain Special Use approval to continue operating.

Sunset Date Defined:

Section 10 of the proposed ordinance requires compliance with these new regulations for uses that were previously classified as “Entertainment, Amusement, Recreation Services—Other” and as a result of the ordinance classified as “Gaming Center” by December 31, 2027. The sunset date parallels legislation passed during the 2026 legislative budget session (Senate File 45 / Enrolled Act 51) which allows current approvals to run through December 31, 2027, and requires the facilities be subject to City approval after July 1, 2027. Under the legislation, local governments may deny continued approval only upon a showing of good cause. The goal of the Special Use approval is to compliment the licensing approval and strengthen ties to development-specific review criteria.

Discussion on Sunset Period:

Financially, the scale of the existing industry also supports the reasonableness of the proposed amortization period. Based on Wyoming’s one percent tax on gaming handle, the combined annual handle of the existing facilities in the corporate limits of Cheyenne is estimated at approximately \$640 million (based on FY2025 budget revenue). Using a rough estimated operator take of approximately nine percent, the facilities collectively may generate gross gaming revenue in the range of approximately \$57.6 million annually, although actual figures may vary based on gaming volume and payout rates. Even at lower estimated take rates of six percent, collective operator revenue would still approximate \$38.4 million annually. These figures indicate that the facilities have substantial ongoing revenue generation capacity during the transition period. Not included in this calculation is any revenue that is dedicated to supporting the local horse racing ecosystem like funding prize money for State horse racing tracks. Significant information regarding revenue. Additional information regarding pari-mutual wagering and historic horse racing was prepared for the 2026 Wyoming State Legislature and that information is online here: <https://wyoleg.gov/InterimCommittee/2024/02-20240507HollandAndHart-PariMutuelWageringHHR.pdf>.

Sunset periods for nonconforming uses typically consider factors such as the character of the use, the extent of permanent investment, the portability of equipment, the time already spent in operation, and the ability of the operator to recover investment costs. Cheyenne’s historic horse racing facilities differ from typical nonconforming commercial uses (like an automotive shop in a residential neighborhood) because the primary operational assets consist of electronic gaming terminals rather than permanent physical infrastructure. Electronic gaming terminals are



depreciating assets, portable, and able to be moved from location to location. Staff believes this sunset period is appropriate for gaming center uses.

RE Regional Entertainment Overlay District Boundaries:

A new Regional Entertainment (RE) Overlay District is proposed and extends to four areas of the community to encourage urban and infill development and support redevelopment opportunities in evolving and transitioning corridors within the City. Also, the designated areas promote development that leverages proximity to regional destinations, major transportation corridors, and interchange areas to attract visitors, support economic activity, and increase vitality across a range of urban contexts. Attached is a map identifying the areas where the overlay district will be established. In the event land areas are annexed and within the area defined as being within the overlay district, they will be zoned concurrent with annexation.

Permitted Uses:

Within the overlay district Gaming Center; Bars and Liquor Stores; Restaurants; Entertainment, Venue (1000+ maximum occupancy); Entertainment, Amusement, Recreation, Other; Campground; and Recreational Vehicle Park will also be uses by right. Present permissibility is detailed below:

Present Permissibility in Affected Zone Districts				
Use	MUB	CB	LI	HI
Gaming Center	-	-	-	-
Restaurants (Food Service)	P	P		
Bars and Liquor Stores	C	C		
Entertainment, Venue (1000+ maximum occupancy)	C	A	C	
Entertainment, Amusement, Recreation, Other	C	C	C	C
Campground			P	
Recreational Vehicle Park			P	
(A=Administrative approval; C= Conditional Use approval; P = Permitted Use)				

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Overlay District Map
4. Enrolled Act 51 (Senate File 45)
5. May 18, 2026, Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING 1.3.11 NONCONFORMITIES; 1.4.4 DEFINITIONS; 1.4.5 INTERPRETATION OF ZONING MAP; 2.2.7 SPECIAL USE APPROVAL; 5.1.2 ZONING DISTRICTS ESTABLISHED; AND 5.1.4 USE TABLE; AND CREATING 5.6.10 REGIONAL ENTERTAINMENT (RE) OVERLAY DISTRICT) AND 5.7.13 GAMING CENTER DEVELOPMENT STANDARDS AND SETTING AN EFFECTIVE DATE FOR COMPLIANCE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on May 18, 2026, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.3.11 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

1.3.11 Nonconformances

c. Nonconforming Uses. Use of land or buildings that legally existed prior to the adoption or amendment of this code, but which could not be commenced under the terms of this code or subsequent amendment are considered legal nonconforming uses. A legal nonconforming use may continue to exist subject to the following:

1. Expansion of a legal nonconforming use requires Board approval in accordance with the procedures and criteria in Article 2 for conditional uses.

2. The use may be changed to a lesser nonconforming use, either in extent or intensity, if the Director determines that the impacts of the new use are less than those of the existing nonconforming use. Accommodating the new use shall not increase any other non-conformances that may exist.

3. If the legal nonconforming use ceases its operation for a continuous period of one year, it shall not be reopened and the building or structure where such use previously existed shall be used only for a conforming use.

4. Where a previously lawful use becomes classified as a Special Use through amendment of this Code, the use may continue for a period established by the adopting ordinance, after which Special Use approval shall be required to continue operation.

Section 4. That Section 1.4.4 of the UDC is amended to add the following definitions and read as shown in Exhibit B, which is attached hereto and incorporated herein.

1.4.4.c Definitions

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as ~~off-track betting~~, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Section 5. That Section 1.4.5 of the UDC is amended to read:

1.4.5 Interpretation of Zoning Map

Where uncertainty exists with respect to any of the boundaries of a zoning district as shown on the zoning map, the following rules shall apply:

- a. Where district boundaries are indicated as approximately following the centerlines of streets or highways or railroad right-of-way lines or the lines extended, they shall be construed to be the boundaries.
- b. Where district boundaries are indicated as approximately following the corporate limit line of the City, the corporate limit line shall be construed to be the boundaries.
- c. Where district boundaries are indicated as approximately following property lines or the lines extended, the property lines or the lines extended shall be construed to be the boundaries.
- d. Where district boundaries are indicated as approximately following the centerline of stream beds or riverbeds, the centerlines shall be construed to be the boundaries.
- e. Where district boundaries are indicated on unplatted properties, the line shall be interpreted as the ten (10) acre tract line created by the federal government under the Public Lands Survey, unless otherwise noted.
- f. Each zoning map page indicates from quarter section to four sections, with most pages showing only one section. When the zoning district designation is not shown on the section line or the edge boundary on any individual map, it shall be construed to be the edge boundary.
- g. Where a boundary is defined by a specific distance or radius from a feature or line, and uncertainty arises as to whether a property or structure falls within that boundary, the

burden of proof shall rest with the landowner. The landowner shall provide a survey, certified by a surveyor licensed in the State of Wyoming, to definitively establish the boundary location relative to the subject property. This survey shall be submitted to the Director for review, shall serve as the controlling document for determination, and shall be prepared at the sole expense of the landowner.

Section 5. That Section 1.4.5 of the UDC is amended to read:

2.2.7 Special Use Approval

- a. ***Intent.*** A special use approval process is intended to provide flexibility for different uses within a zoning district, and specifically allow the potential for additional uses that due to their varying design and operational characteristics may not be generally appropriate in a zoning district, but require case-specific review to determine the compatibility of the use, the associated site design, and the operational characteristics with surrounding uses and development patterns.
- b. ***Applicability.*** An application for a special use may be initiated by the property owner or authorized agent for any use permissible as a “special use” within an existing or pending zoning district under this Code. ~~An application for a special use may be initiated by the property owner or authorized agent for any use requiring a “special use” approval in these regulations.~~
- c. ***Specific Procedures.*** Special use approval has the following specific procedures:
 1. ***Pre-application Conference.*** A pre-application conference is not required. ~~but may be used to discuss planning and engineering issues, and specific application procedures and requirements for a formal application and coordination of the Special Use Permit request with the Site Plan Review Process.~~
 2. ***Staff Review.*** Upon receipt of a formal application staff will conduct an internal review and may forward copies of the application to any pertinent external agencies for review and comment.
 - (a) ***Complete Application.*** Within seven (7) days of submittal of the application, staff shall determine whether the application is complete according to official application requirements. Staff shall notify the applicant in writing of any deficiencies in incomplete applications giving directions and deadlines to cure deficiencies. Staff shall schedule complete applications for consideration of the City Council between 15 and 60 days of the determination of a complete application. ~~Staff shall schedule complete applications for formal internal review subject to the criteria in this section and any additional criteria required by the use.~~
 - (b) ***Notice.*** Prior to Review by the City Council the following ~~Notice~~ notice shall occur:
 - (1) ***Posted Notice.*** Prior to a recommendation, staff shall provide one sign for each road ~~frontage~~ frontage indicating that there is a pending development application. The applicant shall ensure that this sign is posted on each road frontage on the property for at least seven (7)

days prior to ~~the recommendation~~ City Council introduction. When the applicant has made all reasonable and good faith efforts to maintain posted notice, failure of this posted notice will not be grounds to invalidate the application

(2) Published Notice. Notice shall be published in a newspaper of general circulation and posted to the City of Cheyenne website at least 15 days prior to City Council introduction indicating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required.

~~(1)~~ (3) Mailed Notice. All owners within 300' of subject property shall be mailed notice indicating the general location of the property, the nature of the application, the location for further information on that application, and the dates of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required. When mailed notice is properly addressed based on the latest property information and deposited in the mail at least 15 days prior to City Council introduction, failure of a party to receive such notice will not be grounds to invalidate any action taken.

(c) *Staff Recommendation.* Upon review according to the criteria in this section, and between 7 and 30 days of the determination of a complete application, the Director shall take one of the following actions and afterward place the application on the next available City Council agenda:

(1) Recommend approval of the application ~~and place on the next available City Council agenda; or~~

(2) Recommend approval of the application with specific conditions or modifications ~~and place on the next available City Council Agenda;~~
or

(3) Recommend Denial of the application and state specific reasons for denial. ~~denial and place on the next available City Council Agenda.~~

3. *City Council Consideration.* The City Council shall consider the application in the form of a resolution. The City Council may approve, deny, or approve the application with reasonable conditions as deemed necessary to protect the public health, safety, and welfare and to ensure compliance with applicable City standards and requirements. ~~Approval and Acceptance. Upon recommendation of the Staff, the application shall be scheduled for approval by the City Council at the next regular meeting. At this meeting City Council shall review the application subject to the criteria of this section and criteria for the special use and:~~

~~(a) Approve the Special Use Permit;~~

~~(b) Approve the Special Use Permit with specific conditions or modifications. Conditions or modifications shall be:~~

~~(1) to better meet standards and review criteria; or~~

~~(2) to address situations created by or aggravated by the proposed application, and which conditions are roughly proportional to the impacts of the proposed development;~~

~~(c) Deny the Special Use Permit.~~

- ~~4. Effect of Decision. The decision of the Governing Body is the final decision City Council shall be final. Approval by the City Council shall be valid for a period not to exceed three years and shall terminate concurrently with the expiration of the any applicable license. Denial of the application shall bar any application for a special use that is not substantially different for at least one year. Any application that has not established the Special Use within 1 year shall be void.~~
- d. ~~Review Criteria.~~ In reviewing and making a decision on ~~the a~~ Special Use Permit, the ~~Governing Body and Staff~~ staff and City Council shall consider:
- ~~1. Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review.~~
 - ~~1.2.~~ Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use;
 - ~~2.3.~~ ~~Whether the~~ The suitability of the subject property for the use, compared with the suitability of the subject property for other uses permitted by right in the zoning district;
 - ~~3.4.~~ Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts;
 - ~~4.5.~~ The duration of the proposed Special Use relevant to the applicability requirements of ~~this section~~ the zoning district and adjacent zoning districts;
 - ~~5.6.~~ Whether any additional site-specific conditions associated with the application are warranted and sufficient to prevent any potential harm to the public health, safety or general welfare;
 - ~~6. The Review and recommendations of other reviewing bodies;~~
 7. Whether the use is in conflict with other applicable regulations, including City, State or Federal regulations;
 8. The adequacy of infrastructure supporting the site.
 9. Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community.

Section 6. That Section 5.1.2 of the UDC is amended as shown in Exhibit C, which is attached hereto and incorporated herein.

5.1.2 Zoning Districts Established

The following zoning districts are established:

Section 7. That Section 5.1.4 of the UDC is amended as shown in Exhibit D, which is attached hereto and incorporated herein.

Section 8. That Section 5.6.10 of the UDC is created to read:

5.6.10 Regional Entertainment (RE) Overlay District

- a. **Intent.** The Regional Entertainment (RE) Overlay District is intended to encourage urban and infill development and support redevelopment opportunities in evolving and transitioning corridors within the City. The district promotes development that leverages proximity to regional destinations, major transportation corridors, and interchange areas to attract visitors, support economic activity, and increase vitality across a range of urban contexts.
- b. **Applicability.** The RE Overlay District applies to the following areas:
 1. West 15th. All lots, parcels, and tracts of land located completely or partially within the area bounded by the alley between 15th Street and Lincolnway on the north, Capitol Avenue on the east, the Union Pacific Railroad on the south, and Bent Avenue on the west.
 2. Reed Rail Corridor. All lots, parcels, and tracts of land adjacent to the Burlington Northern or Union Pacific Rail Line within the area bounded by 23rd Street on the north, Bent Avenue on the east, the Union Pacific Railroad on the south, and Snyder Avenue and an extension of Snyder Avenue south to its intersection with the Union Pacific Railroad on the west.
 3. West Lincolnway. All lots, parcels, and tracts of land lying within two hundred (200) feet of each side of the West Lincolnway right-of-way, from Crow Creek westward to the corporate limits of the City. The standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no instance shall the permitted use extend beyond three hundred and fifty (350) feet of the West Lincolnway right-of-way, as measured perpendicularly from said right-of-way line.
 4. High Plains Road Interchange. All lots, parcels, and tracts of land within the corporate limits of the City and adjacent to the Interstate 25 right-of-way and lying within 3,000 feet of the centerline of High Plains Road, as measured along the Interstate 25 right-of-way from said centerline. For purposes of determining adjacency, an intervening railroad right-of-way or State-owned land shall not be construed to break or interrupt adjacency to the Interstate 25 right-of-way. The

standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no instance shall the permitted use extend beyond 2,500 feet of the Interstate 25 right-of-way, as measured perpendicularly from said right-of-way. Any subsequent relocation, reconstruction, or realignment of High Plains Road or Interstate 25 shall not alter the boundaries of the overlay district.

- c. **Context.** This district is most appropriate in areas with existing or future urban development patterns.
- d. **Permissible Uses.** All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1. Notwithstanding Table 5-1, Gaming Centers shall be a Permitted Use within the RE Overlay District.
- e. **Site and Building Design Standards.** All uses shall be subject to the development standards of the underlying zone district.

Section 9. That Section 5.7.13 of the UDC be created to read:

5.7.13 Gaming Centers

In districts where a Gaming Center is allowed, a Gaming Center shall meet the following standards in addition to all other lot and building standards for the underlying district.

- a. In Community Business – CB and Central Business District – CBD:
 - 1. Be located five hundred (500) feet from any elementary or secondary school, child care center operating as the sole primary use of an independent structure, place of worship, or public park or recreation facility. Measurement shall be made in a straight line, without regard to intervening structures or streets, from the nearest exterior wall of the premises or structure housing the off-track betting facility to the nearest exterior wall of the primary structure of a place of worship, school, or child care center, or to the nearest property line of a public park or recreation facility.
 - 2. Be adjacent to a Collector, Minor Arterial, or Principal Arterial street. Access to a Collector, Minor Arterial, or Principal Arterial street is not required.
- b. In the RE Overlay District:
 - 1. For properties developed within the Reed Rail Corridor, the primary pedestrian entrance to the Gaming Center shall be oriented toward the Reed Rail Corridor. Exceptions may be approved through the Administrative Adjustment process if the Director finds that a pedestrian entrance oriented toward the Reed Rail Corridor cannot be reasonably accommodated due to conditions specific to the property.

Section 10. That any legally established use that becomes classified as a Special Use as a result of this ordinance shall be authorized to continue operations through December 31, 2027, after which the use shall obtain Special Use approval pursuant to UDC Section 2.2.7 or cease operation.

Section 11. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 12. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

1.3.11 Nonconformances

- a. **Generally.** Within the zoning districts established by this Title and amendments that may later be adopted, there exist land and uses of land which were lawful before this Title was passed or amended, but which would be affected by the terms of this Title or future amendments. Therefore, it is the intent of this Title to permit these nonconforming uses and conditions to continue, provided that:
 1. The continuation of the nonconformance is not detrimental to the public health, safety and welfare;
 2. Any future development activity on the site seeks to conform to the code to the extent practical; and
 3. All efforts to alleviate or gradually eliminate the undesirable consequences of nonconformances are made. It is further the intent of this Title that these nonconforming uses and conditions shall not be used as grounds for allowing other uses or conditions prohibited elsewhere in the district.
- b. **Nonconforming Structures.** Structures that were legally constructed prior to the adoption or amendment of this code, but which could not be constructed under the terms of this code or subsequent amendment are considered nonconforming structures. A nonconforming structure may continue to exist or expand subject to the following:
 1. An extension of a structure, or placement of an accessory building, which does not further encroach upon the violated yard requirement, may be granted upon the approval of the Director, if it is found the extension or placement of structure is not detrimental to the purposes or intent of this Title.
 2. If destroyed by fire or other natural disaster, the structure may be restored to its original condition if the restoration is started within one year. A two-year extension may be granted by the Director for a building or structure provided a written request for such extension is received from the building owner prior to the end of the original one-year period.
 3. If the structure is determined obsolete or substandard by virtue of any applicable code beyond this Title, and the cost of improvement or restoration exceeds fifty percent of the fair market value of the structure,

ARTICLE 1

GENERAL PROVISIONS

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then the right to maintain the nonconformance shall terminate.

- c. **Nonconforming Uses.** Use of land or buildings that legally existed prior to the adoption or amendment of this code, but which could not be commenced under the terms of this code or subsequent amendment are considered legal legal nonconforming uses. A legal nonconforming use may continue to exist subject to the following:

1. Expansion of a legal nonconforming use requires Board approval in accordance with the procedures and criteria in Article 2 for conditional uses.
2. The use may be changed to a lesser nonconforming use, either in extent or intensity, if the Director determines that the impacts of the new use are less than those of the existing nonconforming use. Accommodating the new use shall not increase any other non-conformances that may exist.
3. If the legal nonconforming use ceases its operation for a continuous period of one year, it shall not be reopened and the building or structure where such use previously existed shall be used only for a conforming use.

4. Where a previously lawful use becomes classified as a Special Use through amendment of this Code, the use may continue for a period established by the adopting ordinance, after which Special Use approval shall be required to continue operation.

- d. **Nonconforming Lots.** Any platted lots that legally existed prior to the adoption or amendment of this code, but which could not be platted under the terms of this code or subsequent amendment are considered nonconforming lots. A nonconforming lot may continue to exist subject to the following:

1. Lots that existed at the time of enactment of the ordinance codified in this Title that do not meet the minimum area or frontage requirements of the zoning district in which they are located may be used as a building site. If Administrative or Board approval is required for a use on the lot, the lot size may be a factor in determining if the use is appropriate.

- e. **Nonconforming Site Conditions.** Any site condition associated with a conforming use or structure (such as parking, driveways, or other non-structural site

characteristic) in existence prior to adoption of these regulations but not in compliance with these regulations or subsequent amendments is considered a nonconforming site condition. Any change in use, expansion of the use, or expansion of the structure associated with the use shall terminate the legal status of the nonconforming site condition, except that in instances where a site plan is required for the proposed development activity, an administrative adjustment may be granted by the Director if:

1. The proposed adjustment does not aggravate any other non-conformance that may exist on the site.
2. The proposed adjustment will not have adverse impacts on adjacent property
3. The proposed adjustment is the minimum deviation necessary from applicable standards and otherwise meets the intent of the current standards. In determining the minimum deviation necessary the Director shall consider:
 - (a) The degree that the applicable standard has changed from prior standards;
 - (b) The initial investment in the non-conforming site condition and the amount of benefit already received from that investment;
 - (c) The proposed action does not unreasonably extend the useful life of the nonconforming site condition; and
 - (d) The practical or financial feasibility of strict conformance in relation to the proposed investment in new development activity.

- f. **Determination of Nonconforming Rights and Status.** If nonconforming rights are challenged, or if there is a request to expand or continue nonconformances, it shall be the property owner's responsibility to provide proof through business records or other records and data that the nonconformance has not ceased operation and has continued in operation without a one-year lapse. It shall also be the property owner's responsibility to provide proof that the nonconforming use legally existed, or was previously grandfathered, at the time the ordinance codified in this Title was adopted.

building designed as a single principal dwelling unit and situated on its own fee simple lot.

Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as a "paired house," matching the appearance of a house or townhouse. A duplex may be situated on its own fee simple lot, but each unit of a side-by-side paired house shall meet all requirements to be platted on individual lots. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as "bungalow court" or "cottage court". Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility- impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building ("Apartment"). A Residential use in a building designed for more than two principal

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

- a. **Residential Uses.** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

Attached Dwelling ("Townhouse" / "Rowhouse"). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front façade, and has its own private entrance to the exterior of the structure.

Detached Dwelling. A Residential use in a detached

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dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including “stacked flats” (3-story/tri-plex), “six-plex” (paired stacked flats), or larger apartment buildings.

Live/Work. A primarily residential use in a building designed for two principal uses, where a portion is designed for residential dwelling use, and a portion is designed for a limited non-residential use to support the occupation or vocation of the resident of the dwelling unit. The non-residential portion is limited to the 1st story and less than 50% of the total floor area of the building. The building is situated on its own fee simple lot but may be attached or detached based on zoning district standards and context.

Mixed-use Dwelling. A Residential use in a building designed for a mix of uses with office or retail on the 1st story / street-front and residential uses on the upper stories where the dwelling units are not accessory to the non-residential uses. Mixed-use buildings may be either small- or large-scale, with larger scale buildings, depending on the context and zoning district standards, and typically being broken into multiple fee simple lots with party walls, but the dwelling units may be owned in fee simple, as condominiums, or apartments.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and located on the same lot as the principal dwelling (commonly referred to as “Basement Apartment” or “Garage Apartment”). The Accessory Dwelling may take forms such as a stand-alone unit in an accessory building, a small unit added onto the principal building, or a “flat-over-flat” duplex.

Urban Loft Building. A residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type contemplates a taller multifamily building, often with parking structured or at grade with the building above, located in a walkable, mixed use context.

Manufactured Home Park. See “Manufactured Housing Park”.

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for

manufactured homes are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

Campground. A Service Use accommodating overnight stays in tents, cabins, or other non-motorized shelters.

Combined Manufactured Housing Park. A Residential Use consisting of a manufactured housing park that, in addition to accommodating manufactured homes, is duly licensed to permit recreational vehicles to occupy independent spaces on the same site. Such facilities are deemed nonconforming uses and shall not be established in the City.

Recreational Vehicle Park. A Service Use providing accommodations for recreational vehicles, travel trailers, motor homes, dependent travel units, and park model recreational vehicles.

- b. **Civic Uses.** The Civic use category includes uses serving a broad and general public and community interest to enhance daily cultural, social or recreation opportunities for area landowners and residents. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be integrated in to these areas with the appropriate level of civic design. The Civic use category may contain uses that are either public and accessible to all citizens; common and accessible by rights associated with ownership; or private and accessible by membership or general association.

Neighborhood Assembly (<350 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare of nearby residents. Neighborhood Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 350 people for any one event. Common examples include meeting halls, neighborhood association club houses, or smaller neighborhood churches.

Community Assembly (350 -1000 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare for citizens in the general vicinity. Community Assemblies typically have buildings and supporting facilities designed for

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a capacity of no more than 1000 people for any one event. Common examples include community centers, museum, or large churches. [For larger assemblies see Entertainment, Venue].

Cemeteries. A Civic use where land is used for the burial of the deceased, both human and animals, and dedicated for internment purposes, including columbaria, crematoria, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

Primary and Secondary Schools. A Civic use where buildings and facilities are used for the education and instruction of K through 12 students.

Educational Facilities. A Civic use where buildings and facilities are used for the education and instruction of post-secondary students, non-traditional students, or continuing education for adult or general population.

Community Athletic Field. A noncommercial facility for active outdoor recreation and organized sports, including a facility which is an accessory use to a school, but excluding any facility with lighted fields or permanent buildings for refreshment stands, locker rooms or shower facilities.

Developed Athletic Field or Stadium. A facility for active outdoor recreation and organized sports which includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

- c. **Service Uses.** The Service use category is for businesses engaged in the exchange of professional skills, advice, personal care or other resources, and the nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, and where lots or buildings may require access or exposure to the public-at-large.

Service Business – Limited. A Service use that primarily supports adjacent residential uses by providing daily services for the convenience of residents, and involving less than 3,000 square feet of gross leasable area. Examples include post office, bank outlet, barber shop or beauty salon, tailor, or other similar services.

Service Business – General. A Service use that provides support for adjacent residential uses or businesses

which may involve more than 3,000 square feet of gross leasable area. Examples include copy centers, large banks, or any other similar services that exceed the scale of Service Business – Limited.

Assisted Living Facility / Nursing Home. A Service use / institutional occupancy providing residential accommodations for 7 or more persons to meet the needs of the aging, semi-dependent or dependent population in a residential environment, together with recreation and support services and facilities for the benefit of the residents and where any permanent on-site staff is accessory to the primarily residential use. On-site skilled nursing care or medical facilities may be provided. An Assisted Living Facility/Nursing Home use is subject to the provisions of Section 5.7.5 of the UDC. An Assisted Living facility/Nursing Home use, pursuant to this definition, does not include a Group Housing use or site. An Assisted Living Facility/Nursing Home operation may take place within a residential or a non-residential structure.

Animal Care, Kennel. A Service use where domestic animals are boarded, bred or sold as a primary business.

Animal Care, Hospital / Clinic. A Service use where animals are admitted for examination, treatment, or health care by a doctor of veterinary medicine, which may include kennels, runs or other accessory accommodations.

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Emergency Shelter. A facility, which provides shelter or overnight accommodations and incidental support services for persons experiencing homelessness and/or families on a short-term basis.

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Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples include racetracks, driving ranges, music performance venues, or other outdoor entertainment venues.

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as ~~off-track betting~~, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Lodging, Bed and Breakfast. A Service use where up to six guest rooms are rented, generally for short-term occupancy for sleeping, together with limited facilities for the accommodations of guests in a home-like atmosphere.

Lodging, Hotel or Motel. A Service use where six or more guest rooms are rented, generally for short-term occupancy for sleeping, together with incidental meeting rooms, restaurants and recreation facilities for the primary benefit of the guests.

Medical Care, Clinic. A Service use where physicians, dentists, or other health care professionals are associated for the purpose of carrying on their professions. A health clinic may include a dental or medical laboratory, after hours emergency care, but it may not include in-patient care or operating rooms for major surgery.

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlled access and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal

property such as boats or recreational vehicles.

- d. **Employment Uses.** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet, and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

- e. **Commercial Uses.** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers

or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than 1/2 mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on-premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption

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off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A supermarket typically involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round

on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

- f. **Industrial Use Category.** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small

appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals (large-scale), metal or chemical manufacturing, and data centers which consistently produce noise discernable at the property line.

Limited Outdoor Storage. A use where less than 50% of the lot is used to store equipment and other materials customarily used in the operations associated with the principal use of the property in an unenclosed area.

Outdoor Storage. A use not classified as Limited Outdoor Storage where property is used to store equipment, vehicles, or other materials in an unenclosed area.

Impoundment Yards. An industrial use where a government agency establishes and operates a fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, the government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

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Salvage Yards. An Industrial use where materials are extracted from unusable equipment, structures, or vehicles and stored for future use or resale.

Junk Yards. An Industrial use where waste or used material are bought, sold, exchanged, stored or processed for disposal.

Pet Crematory. An Industrial use where land and buildings are used for the preparation and processing of deceased domestic animals.

Air Cargo Terminals. An Industrial use where land and buildings are used for the storage of airplanes, airplane cargo or other facilities associated with air transportation or air shipping.

Aircraft Sales, Repair, Service, Storage. An Industrial use where land and buildings are used for keeping inventory related to aircraft sales or for the storage and maintenance of aircraft.

Railroad Yards and Maintenance Buildings. An Industrial use where land and buildings are used for the storage of rail cars, rail cargo or other facilities associated with rail transportation or rail shipping.

- g. **Public Service Uses.** The Public Service use category is for businesses or government entities engaged providing technical and operational services that serve the general public and community interest to enhance general health, safety, welfare and convenience for landowners and residents, and that serve interests beyond the specific site or facility. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be buffered from the adjacent areas they serve with the appropriate site design, or alternatively which can be located in special purpose districts and still serve the public interest.

Commercial or Public Parking Facility. A Public Service use where land and buildings are used for hourly or daily parking of passenger vehicles that serves other uses, sites and buildings in the vicinity. The parking services may be owned by the government or owned and operated as a business.

Government Facility. A facility or area of land controlled and/or operated by a government entity to aid in providing a service to the citizens under the

jurisdiction of that entity.

Military. A Public Service use where land and buildings are used for operations of the United States Armed Forces.

Recycling Services. A Public Service use where land and buildings are used for the public drop-off, storage, and packaging of recyclable materials. Processing may occur on site, or materials may be shipped to other industrial sites for further processing.

Transportation Facilities. A Public Service use engaged in the business of offering transportation services to the public, such as airport terminals, bus stations, train stations, taxi stations, parking garages, bicycle depots or similar facilities for common storage personal vehicles or common boarding of public vehicles.

Utility Stations. A Public Service use where land is used for the concentrated location of fixed equipment necessary to serve adjacent areas with utility service, including other accessory buildings and facilities essential to the operation of the equipment.

- h. **Agriculture Uses.** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; and the work of cultivating the soil, producing crops and raising livestock. General Agriculture specifically excludes concentrated feeding operations where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.

Limited Agriculture. The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.

Agricultural Equipment and Supply. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related

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land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land and buildings are used for the retail sale of agricultural products and operated without any additional or permanent site facilities than are otherwise associated with agriculture use. Road side stands, truck sales, or barn sales are examples of such uses, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar equine animals.

Nurseries, Landscaping. An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

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- 5.1 General Provisions
- 5.2 Rural and Agriculture Districts Standards
- 5.3 Residential Neighborhood Districts Standards
- 5.4 Commercial and Mixed-Use Districts Standards
- 5.5 Industrial Districts Standards
- 5.6 Special Purpose and Overlay Districts Standards
- 5.7 Specific Use Standards
- 5.8 Supplemental Provisions

5.1.2 Zoning Districts Established

The following zoning districts are established:

<i>Rural and Agriculture Districts</i>	
AG	Agricultural
AR	Agricultural Residential
RR	Rural Residential
<i>Residential Neighborhood Districts</i>	
LR	Low-density Residential
MR	Medium-density Residential
HR	High-density Residential
NR-1	Neighborhood Residential - Moderate Density
NR-2	Neighborhood Residential – Medium Density
NR-3	Neighborhood Residential – High Density
<i>Commercial and Mixed-Use districts</i>	
NB	Neighborhood Business
CB	Community Business
CBD	Central Business District
MUR	Mixed-Use Residential Emphasis
MUB	Mixed-Use Business Emphasis
MUE	Mixed-Use Employment Emphasis
BP	Business Park
<i>Industrial Districts</i>	
LI	Light Industrial
HI	Heavy Industrial
<i>Special Purpose and Overlay Districts</i>	
P	Public District
PUD	Planned Unit Development
AD	Airport District
SS	Support Services
M	Military
AHR	Airport Height and Use Restrictions
CHR	State Capitol Height Restrictions

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5.1 GENERAL PROVISIONS

RE	<u>Regional Entertainment</u>
RUCAO	<u>Restricted Use Control Area Overlay District</u>
UU	<u>Urban Use Overlay District</u>
<i>Form-based Code Districts*</i>	
T-1	Natural
T-2	Rural
T-3	Suburban
T-4	General Urban
T-5	Urban Center
T-6	Urban Core
D	District
CS	Civic Space

* Form-based code districts are subject to a Regulating Plan, and the procedures and district standards in Article 7. Each district may further be limited with respect to uses by L (limited), R (restricted), and O (open) based on a specific Regulating Plan.

category for a specific use.

Uses are allowed in various zoning districts as either “permitted by right” (P), “permitted after administrative review” (A), or “permitted after conditional discretionary review” (C), or “permitted after special use review” (S) as indicated in Table 5-1. Uses, including those ‘permitted by right’, typically require site plans and building permits to be lawfully established. The procedures and general criteria for these reviews are included in Article 2.

5.1.4 Districts and Uses

Uses have been grouped in general categories, wherever possible. The categories are meant to allow discretion in determining permitted uses. Some uses are more specifically listed because of anticipated impacts associated with the use which warrant special treatment with respect to which district they are allowed in or special review procedures and standards that make the use compatible with certain districts. These cannot be included in the general categories and they require the approval process as indicated. Applicants and staff will need to work closely together in determining the appropriate

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5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Residential Uses																									
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P				
Cottage Lots				C	C	C	C	P	P			P				P	P				P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P				
Dormitories					C	A						P				P	P				P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P				
Live/Work					C	P		C	A	P	P	P				P	P	P	C		P				
Mixed-use Dwelling										P	P	P				P	P	P	C		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P				
Urban Loft Building									C	P	C	C				C	P				P				
Manufactured housing parks		C		C	C	C															P				
Civic Uses																									
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A	C		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A	C		P				
Cemeteries	A									A	A	P	C		C	A	A	A			P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A	C		P				
Educational facilities											P	P			P		A	A	C		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A	P		P				
Developed Athletic Field or Stadium											C		C		C		C	C	P		P				
Service Uses																									
Service Business - Limited										P	P	P				A	P	P	P		P				
Service Business - General										C	P	P				C	C		P		P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P				
Animal Care - Kennel	P	C									P		P						P		P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C				P				
Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P				
Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P				
Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P	P		P				
Emergency Shelter											P		C												
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P	P		P				

Planned District—uses subject to a development plan

Federal Property—No City authority over uses

Overlay District—uses subject to base zoning district

Overlay District—uses subject to base zoning district

P = Use permitted by right A = Use permitted after administrative review C = Use permitted after conditional discretionary review
 S = Use permitted after special use review (blank = prohibited use)

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Services Uses (cont.)																									
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C	P		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C	P		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C	C		P				
Gaming Center											S	S													
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P			P				
Lodging, Hotel / Motel											P	P					P	P	P		P				
Campground	C	C											P						C		P				
Recreational Vehicle Park	C	C											P						C		P				
Medical Care, Clinic and Office										P	P	P				C	P	P	P		P				
Medical Care, Hospital															P			P	P		P				
Mini Storage					C	C					P	C	P	P		C	C	P							
Storage, Yard													C	P					C		P				
Employment Uses																					P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P	P		P				
Commercial Uses																									
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A	P		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C	P		P				
Warehouse Retail (> 100K)											P	P	P				P		P		P				
Grocery Store <45K										P	P	P	P				P	P	P		P				
Supermarket > 45K											P	P	P				P	C	P		P				
Outdoor Sales, Limited										A	P	A				A	A	A	C		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C	C		P				
Outdoor Sales											C		C	C			C		C		P				
Bars and liquor stores										C	C	P			A		C	C		P	P				
Automobile Service Repair										C	P	C	P	P			C	C	P		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P	P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

Overlay District – uses subject to base zoning district

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Commercial Uses (cont.)																									
Automobile Service Station - General											P	C	P	P				C	P		P				
Automobile Service Station – Large-scale											C		C	P					P		P				
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P	P				
Food Service – General (2K – 4K)										C	P	P					P	P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P	P		P				
Industrial Uses																									
Data Center										C	C	C	P	P			C	P	P						
Limited Industrial										A	A	P	P	P	P	A	P	P	P		P				
Moderate Industrial												C	P	P			C	P	P		P				
General Industrial													C	P					P		C				
Industrial														C					C		C				
Limited Outdoor Storage													P	P	C			A	P		C				
Outdoor Storage													C	P				C			C				
Impoundment Yards													P	P			C	C			C				
Salvage yards													C	C							C				
Junk yards														C							C				
Air cargo terminals																				P	C				
Aircraft sales, repair, service, storage and relating uses																				P	C				
Railroad yards and maintenance buildings													P	P					P		C				
Oil and Gas Support Services														S											
Public Service Uses																									
Commercial and Public Parking Facility												P			P		P	P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P	P				
Military																				P	P				
Recycling Services											C		P	P			C	C	C		P				
Transportation facilities											C		P	P	P				P	P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	P				
Agriculture Uses																									
General Agriculture	P																			P	P				
Limited Agriculture	P	P																		P	P				
Agricultural equipment or product sales	C																				P				
Commercial stables, arenas, and show barns	C	C																			P				
Nurseries, landscaping	P	P									C		P	P			C				P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

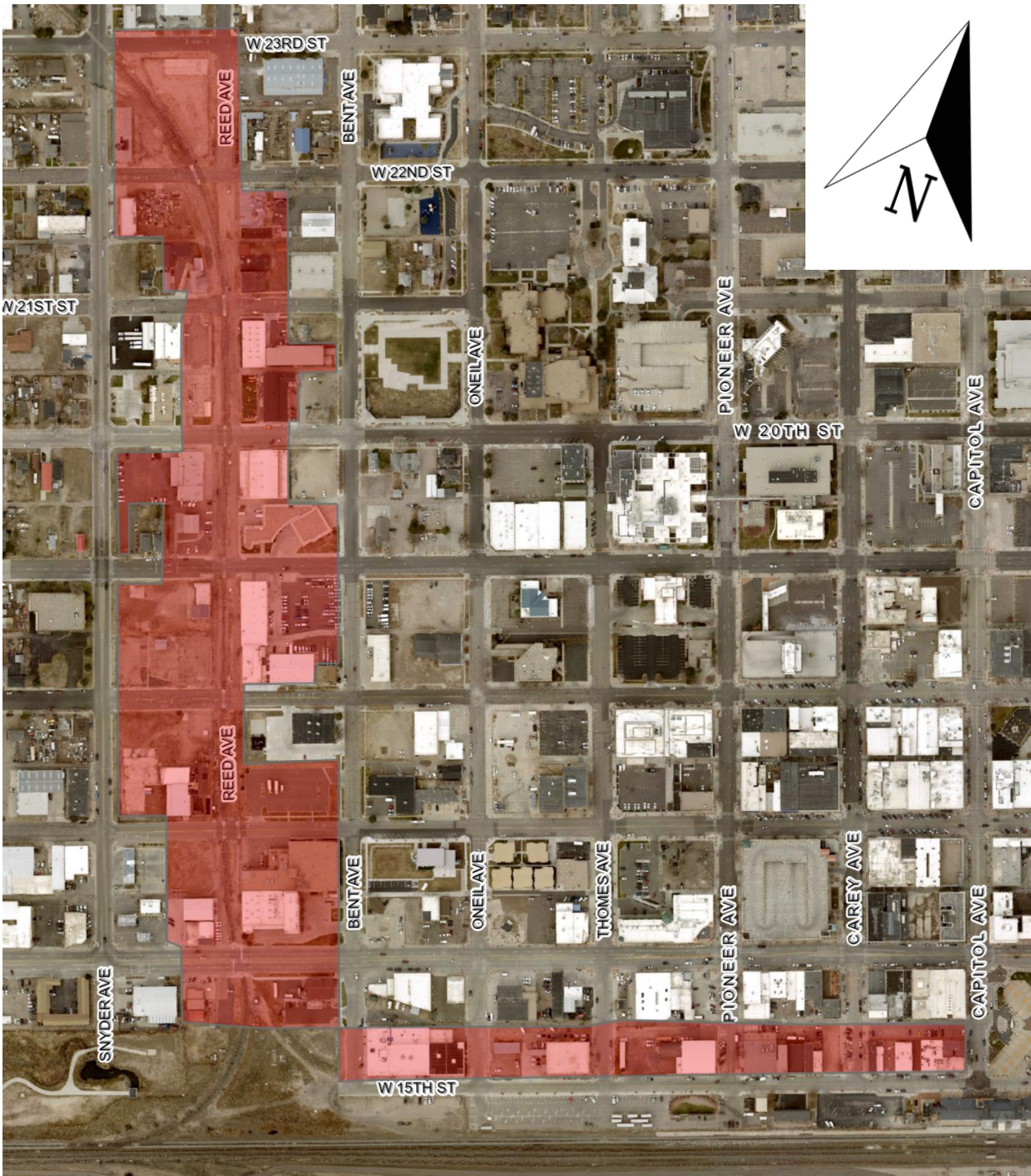
Overlay District – uses subject to base zoning district

Regional Entertainment Overlay District Areas

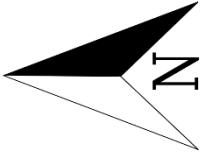
High Plains Interchange



Reed Rail and W 15th Street:



West Lincolnway:



ENROLLED ACT NO. 51, SENATE

SIXTY-EIGHTH LEGISLATURE OF THE STATE OF WYOMING
2026 BUDGET SESSION

AN ACT relating to pari-mutuel wagering; specifying requirements for simulcasting permits, including historic horse racing terminals; requiring approval by a city, town or county for the issuance of a simulcasting permit as specified; authorizing conditions and revocation of approval; authorizing appeals; amending enforcement requirements; conforming provisions; specifying applicability; and providing for an effective date.

Be It Enacted by the Legislature of the State of Wyoming:

Section 1. W.S. 11-25-210 is created to read:

11-25-210. Simulcasting permits; rulemaking; local approval; permit conditions; revocation; judicial review.

(a) Simulcasting shall be conducted only by a person holding a simulcasting permit issued by the commission and approved by the local approving authority under this section.

(b) The commission shall promulgate rules for simulcasting that are reasonably necessary to protect the public interest.

(c) A simulcasting permit is a type of pari-mutuel event permit and, except as specifically provided for in this section, is subject to the same terms and conditions, and shall be issued and renewed by the commission in the same manner as pari-mutuel event permits issued under this act.

(d) A simulcasting permit issued or renewed by the commission off the permitted premises shall be subject to the following:

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(i) If the simulcasting will be conducted within the corporate limits of any city or town the permit or renewal shall be subject to approval by the governing body of that city or town, subject to paragraph (iii) of this subsection;

(ii) If the simulcasting will be conducted outside the corporate limits of any city or town the permit or renewal shall be subject to approval by the board of county commissioners of the county in which the simulcasting will be conducted, subject to paragraph (iii) of this subsection;

(iii) If the simulcasting will be conducted within the corporate limits of any city or town, the permit or renewal application shall be subject to review and objection by the board of county commissioners of the county in which the simulcasting will be conducted. If the simulcasting will be conducted within one-half (1/2) mile of the corporate limits of any city that has exercised the authority granted under W.S. 15-3-202(b)(ii), the permit or renewal application shall be subject to review and objection by the governing body of that city or town. Any city, town or county that objects under this paragraph shall submit written findings stating the basis for the objection, including impacts on land use, public safety, taxation or other substantial interests. The objection shall be transmitted to the local approving authority within thirty (30) days of the objecting city, town or county receiving the permit or renewal application. An objection shall be deemed addressed once the local approving authority places it on a public agenda, considers the written findings and takes formal action to sustain, modify or overrule the objection. No permit or renewal

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shall be approved until all timely submitted objections have been addressed;

(iv) No simulcasting may be conducted within one hundred (100) miles of any live pari-mutuel event permitted under this act during the time the event is being held, except that the commission may waive the one hundred (100) mile limitation if the simulcasting permitholder obtains written approval from the live pari-mutuel event permitholder conducting the event;

(v) A simulcasting permit or renewal shall be issued by the commission only to an applicant authorized under this act to conduct a pari-mutuel event other than simulcasting;

(vi) Except as provided by paragraph (e)(ii) of this section, counties, towns and municipalities shall not charge a monetary fee to obtain a simulcasting permit or renewal that exceeds the actual costs of issuing the permit or renewal.

(e) An applicant for a simulcasting permit or renewal shall:

(i) File an application for approval with the local approving authority. Renewal applications shall be filed not later than ninety (90) days prior to expiration of the permit;

(ii) At the time of filing the application, pay an amount sufficient to reimburse the actual cost of publishing notice of the application;

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(iii) Identify in the application the specific location in the city, town or county where simulcasting will be conducted and the number of historic horse racing terminals to be permitted at that location.

(f) After receipt of an approval or renewal application, the local approving authority shall promptly prepare and publish notice of the application in a newspaper of general circulation in the state once a week for two (2) consecutive weeks and shall post the notice on its official website. The notice shall state that the named applicant has applied for approval or renewal of a simulcasting permit, that protests against the issuance or renewal of the permit, if any, will be heard at a designated meeting of the local approving authority, and shall include the date, time and meeting place of the designated meeting. For a renewal application, the local approving authority shall hold the designated meeting not later than thirty (30) days prior to expiration of the permit.

(g) A local approving authority, in considering the approval or renewal of simulcasting permits issued by the commission:

(i) Shall not approve or deny an application before the date set for the designated meeting in the published notice of the application;

(ii) Shall not consider, modify or impose conditions that are solely within the jurisdiction of the commission;

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(iii) May impose reasonable conditions on approval or renewal, which shall be negotiated in good faith with the applicant, including the following:

(A) A schedule of operating hours for the permitted premises, provided the hours of operation shall not be more restrictive than the hours of operation for alcohol sales set pursuant to W.S. 12-5-101 for the holder of a retail liquor license under W.S. 12-4-201;

(B) Designation of areas within the permitted premises where historic horse racing terminals may be located, to the extent the designations are not inconsistent with rules of the commission.

(iv) May modify any condition imposed under paragraph (iii) of this subsection only upon a showing of good cause;

(v) Shall grant approval for the same term as is granted by the commission for the simulcasting permit, if the application is approved;

(vi) Shall issue written findings and conclusions if the application is denied;

(vii) Shall have the right to revoke approval or deny a renewal only for good cause, which shall be limited to any of the following:

(A) A breach of a reasonable condition imposed by the local approving authority or the commission, if the permitholder fails to take reasonable steps to cure the breach within ten (10) business days after receiving written notice of the breach from the local approving

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authority or the commission, or a date agreed upon by the permitholder and the local approving authority or commission;

(B) Notification from the commission that the permitholder has been found in violation of any Wyoming gaming law specified in this chapter, W.S. 6-7-101 through 6-7-104 or 9-24-101 through 9-24-106;

(C) Failure to demonstrate commencement of simulcasting at the permitted location within two (2) years after the permit is issued. Upon a showing of good cause by the permitholder, the local approving authority and commission may extend the period for commencement of simulcasting for one (1) additional year;

(D) The welfare of the people residing in the vicinity of the permitted premises is adversely and seriously affected by the permitted premises.

(h) A simulcasting permitholder may appeal a denial of renewal or revocation of approval by the local approving authority to the district court in the county where the permitted premises are located.

(j) An applicant for a new simulcasting permit may appeal a decision of the local approving authority to the district court in the county where the application is filed only if that authority has previously granted approval for a simulcasting permit within its jurisdiction. If the local approving authority has not previously granted an approval for a simulcasting permit, the applicant shall have no right of appeal from the decision of the local approving authority.

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(k) Subject to the approval of the local approving authority, the transfer of an existing simulcasting permit involving a change of location within the same local approving authority's area of jurisdiction shall be treated as a renewal of a simulcasting permit. A transfer involving a change of location outside of the current local approving authority's area of jurisdiction shall be treated as a new application and shall be subject to all application, review and approval requirements applicable to a new simulcasting permit.

Section 2. W.S. 11-25-102(a)(vii)(intro) and by creating new paragraphs (xxiii) and (xxiv), 11-25-104(g)(intro) and 11-25-201(a) are amended to read:

11-25-102. Definitions.

(a) As used in this act:

(vii) "Simulcasting" means the sale of pari-mutuel pools electronically transmitted live or historic on interstate or intrastate pari-mutuel events as prescribed by the commission; ~~The commission shall authorize simulcasting subject to the following conditions:~~

(xxiii) "Local approving authority" means the local authority with responsibility to approve, deny or revoke a site-specific application or renewal for a simulcasting permit issued by the commission;

(xxiv) "Local authority" means the governing body of a city, town or county in Wyoming.

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11-25-104. Gaming commission; officers; director; meetings; quorum; records; licenses generally; effect of financial interest in events.

(g) The commission may delegate authority to enforce rules of the commission and this act to three (3) stewards at each live pari-mutuel event, at least one (1) of whom shall be an employee of and selected by the commission. ~~The commission shall require at least one (1) steward to supervise each simulcast location that is approved by the commission.~~ Stewards shall exercise such reasonable and necessary authority as is designated by rules of the commission including the following:

11-25-201. Pari-mutuel permits; fees and reports; disposition of funds; enforcement of provisions.

(a) The commission may issue pari-mutuel permits for a specified period not to exceed three (3) years from the date of issuance to any Wyoming county, city, incorporated town, county fair board or any corporation or association ~~which~~ that has been approved by the board of county commissioners, except as provided for simulcasting permits in W.S. 11-25-210, and that provides a bond acceptable to the commission. No permit shall be granted to any city, town, county, county fair board or any corporation or association except upon the express condition that it shall not, by any lease, contract, understanding or arrangement of whatever kind or nature, grant, assign or turn over to any person, corporation or association the operation or management of the pari-mutuel event permitted under this act or of the pari-mutuel system of wagering or in any manner permit any person, corporation or association to retain any of the money received for admission to the race meeting or from the operations of the pari-mutuel system.

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The commission shall revoke the permit of any permittee for any violation of the foregoing condition and such acts are a violation of this act. The permit is effective only for the times and at the places for which issued. In addition to all other fees and charges, there shall be charged before issuance of a permit a daily fee established by the commission to defray expenses of enforcing this act.

Section 3. W.S. 11-25-102(a)(vii)(A) through (D) is repealed.

Section 4.

(a) Notwithstanding W.S. 11-25-210, as created by this act, a person holding a simulcasting permit as of the effective date of this act shall be authorized to continue operations through December 31, 2027, subject to the conditions of the existing permit and approval.

(b) Subject to this subsection, on and after July 1, 2027, a person holding a simulcasting permit as of the effective date of this act shall be subject to the requirements of W.S. 11-25-210. A city, town or county may deny or withhold approval of a simulcasting facility permitted as of the effective date of this act, only upon a showing of good cause, as specified in W.S. 11-25-210(g)(vii).

ORIGINAL SENATE
FILE NO. SF0045

ENGROSSED

ENROLLED ACT NO. 51, SENATE

SIXTY-EIGHTH LEGISLATURE OF THE STATE OF WYOMING
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Section 5. This act is effective July 1, 2026.

(END)

Speaker of the House

President of the Senate

Governor

TIME APPROVED: _____

DATE APPROVED: _____

I hereby certify that this act originated in the Senate.

Chief Clerk



CITY OF
CHEYENNE
— PLANNING & —
DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION

MAY 18, 2026

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code (UDC) amending 1.3.11 Nonconformities; 1.4.4 Definitions; 1.4.5 Interpretation of Zoning Map; 2.2.7 Special Use Approval; 5.1.2 Zoning Districts Established; and 5.1.4 Use Table; and creating 5.6.10 Regional Entertainment (RE) Overlay District) and 5.7.13 Gaming Center Development Standards.

CASE NUMBER: PLTA-26-1

PURPOSE: Various Text amendments related to nonconformities, special use approvals, and the Use Table and creation of the Regional Entertainment overlay District, and development standards for gaming facilities (off-track betting facilities).

PREPARED BY: Charles Bloom, AICP, Planner and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body approve text amendments to the Unified Development Code amending UDC sections 1.3.11 Nonconformities; 1.4.4 Definitions; 1.4.5 Interpretation of Zoning Map; 2.2.7 Special Use Approval; 5.1.2 Zoning Districts Established; and 5.1.4 Use Table; and creating 5.6.10 Regional Entertainment (RE) Overlay District) and 5.7.13 Gaming Center Development Standards as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the City Council, Planning and Development Director, and City Engineer are authorized under UDC 2.4.1.b to bring forward text amendments on their own initiative.

This is a proposed Unified Development Code (UDC) Text amendment for the purpose of amending the UDC regarding the special use process and other elements regarding off-track betting facilities.

The amendment will propose modifying multiple sections of the UDC to address the following:

- Modifications to the Nonconformities section
- Creation and modification of definitions related to historic horse racing off-track betting facilities
- Amendments to the special use approval process
- Creation of the Regional Entertainment overlay district
- Creation of Development Standards related to off-track betting facilities.

PROPOSED AMENDMENT:

Numerous sections of code are proposed for amendment, and each section is summarized below. Below is a brief summary followed by the actual text that will be included in the ordinance forwarded on to the Governing Body (Note, the UDC refers to the Governing Body as the “City Council” hence the reference in the proposed amendment).

Summary: 1.3.11 — Nonconformances

The amendments to this section allow for an adopted ordinance to create nonconformities through sunset provisions. Sunset provisions are not included in the UDC text amendment—just recognition that they could apply if included in the adopting ordinance. Additionally, “legal” has been added to “nonconforming” for consistency.

Amendment Text:

1.3.11.c, Nonconformances, Nonconforming Uses. Use of land or buildings that legally existed prior to the adoption or amendment of this code, but which could not be commenced under the terms of this code or subsequent amendment are considered legal nonconforming uses. A legal nonconforming use may continue to exist subject to the following:

1. Expansion of a legal nonconforming use requires Board approval in accordance with the procedures and criteria in Article 2 for conditional uses.
2. The use may be changed to a lesser nonconforming use, either in extent or intensity, if the Director determines that the impacts of the new use are less than those of the existing nonconforming use. Accommodating the new use shall not increase any other non-conformances that may exist.
3. If the legal nonconforming use ceases its operation for a continuous period of one year, it shall not be reopened and the building or structure where such use previously existed shall be used only for a conforming use.
- 3.4. Where a previously lawful use becomes classified as a Special Use through amendment of this Code, the use may continue for a period established by the adopting ordinance, after which Special Use approval shall be required to apply for necessary approvals to continue operation.

Summary: 1.4.4.c, Descriptions of Uses of Land and Buildings, Service Uses

Two changes are made to the definitions article. Off-track betting is removed from the list of example uses within the 'Entertainment, Amusement, Recreation Services—Other' definition, as that activity is now captured under a newly created 'Gaming Center' definition. The 'Gaming Center' definition describes an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted under state or federal law, including ancillary amenities such as lounges and food and beverage service. The definition expressly excludes family-style arcades, amusement-only venues, and incidental charitable fundraising activities such as nonprofit bingo or raffles.

Amendment Text:
1.4.4.c Service Uses

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as ~~off-track betting~~, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Gaming Center. A Gaming Center is an establishment primarily dedicated to wagering on live or historic horse races through pari-mutuel or electronic systems, or other lawful wagering activities conducted in accordance with state or federal law. The use includes dedicated wagering areas, electronic terminals, and administrative space, often featuring ancillary amenities such as lounges, food and beverage service, and the on-premises sale of alcoholic beverages. This definition specifically excludes family-style game centers, arcades, or venues where the primary use consists of amusement-only or skill-based machines. Furthermore, it does not include incidental or temporary fundraising activities such as nonprofit bingo, charitable raffles, or similar occasional social gaming events that do not constitute regulated professional gambling.

Summary: 1.4.5 — Interpretation of Zoning Map

A new subsection is added establishing a burden-of-proof standard for boundary disputes involving distance-based overlay district boundaries. Where uncertainty exists as to whether a property falls within such a boundary, the landowner bears the burden of proof and must provide a survey certified by a Wyoming-licensed surveyor, submitted to the Director for review, prepared at the sole expense of the landowner, and serving as the controlling document for the determination.

Amendment Text:
1.4.5, Interpretation of Zoning Map

Where uncertainty exists with respect to any of the boundaries of a zoning district as shown on the zoning map, the following rules shall apply:

- a. Where district boundaries are indicated as approximately following the centerlines of streets or highways or railroad right-of-way lines or the lines extended, they shall be construed to be the boundaries.
- b. Where district boundaries are indicated as approximately following the corporate limit line of the City, the corporate limit line shall be construed to be the boundaries.
- c. Where district boundaries are indicated as approximately following property lines or the lines extended, the property lines or the lines extended shall be construed to be the boundaries.
- d. Where district boundaries are indicated as approximately following the centerline of stream beds or riverbeds, the centerlines shall be construed to be the boundaries.
- e. Where district boundaries are indicated on unplatted properties, the line shall be interpreted as the ten (10) acre tract line created by the federal government under the Public Lands Survey, unless otherwise noted.
- f. Each zoning map page indicates from quarter section to four sections, with most pages showing only one section. When the zoning district designation is not shown on the section line or the edge boundary on any individual map, it shall be construed to be the edge boundary.
- g. Where a boundary is defined by a specific distance or radius from a feature or line, and uncertainty arises as to whether a property or structure falls within that boundary, the burden of proof shall rest with the landowner. The landowner shall provide a survey, certified by a surveyor licensed in the State of Wyoming, to definitively establish the boundary location relative to the subject property. This survey shall be submitted to the Director for review, shall serve as the controlling document for determination, and shall be prepared at the sole expense of the landowner.

Summary: 2.2.7, Special Use Approval

Section 2.2.7 is substantially reorganized to reflect similar processes in the Department and recognize actual steps taken. Although infrequently used, the written process is not aligned with actual process. Amendments have also been made to require public notice and to broaden the review criteria to allow for more detailed review of any application—types eligible for Special Use review.

New criteria have been added clarifying that the use must meet, and may exceed, UDC development requirements. The amendment also adds a review criterion evaluating whether the proposed use provides demonstrable public benefits such as affordable housing, recreational opportunities, open space, or cultural amenities that serve the general welfare.

Amendment Text:**2.2.7, Special Use Approval**

a. **Intent.** A special use approval process is intended to provide flexibility for different uses within a zoning district, and specifically allow the potential for additional uses that due to their varying design and operational characteristics may not be generally appropriate in a zoning district, but require case-specific review to determine the compatibility of the use, the associated site design, and the operational characteristics with surrounding uses and development patterns.

b. **Applicability.** An application for a special use may be initiated by the property owner or authorized agent for any use permissible as a "special use" within an existing or pending zoning district under this Code. ~~An application for a special use may be initiated by the property owner or authorized agent for any use requiring a "special use" approval in these regulations.~~

c. **Specific Procedures.** Special use approval has the following specific procedures:

1. **Pre-application Conference.** A pre-application conference is not required, ~~but may be used to discuss planning and engineering issues, and specific application procedures and requirements for a formal application and coordination of the Special Use Permit request with the Site Plan Review Process.~~

2. **Staff Review.** Upon receipt of a formal application staff will conduct an internal review and may forward copies of the application to any pertinent external agencies for review and comment.

(a) **Complete Application.** Within seven (7) days of submittal of the application, staff shall determine whether the application is complete according to official application requirements. Staff shall notify the applicant in writing of any deficiencies in incomplete applications giving directions and deadlines to cure deficiencies. Staff shall schedule complete applications for consideration of the City Council between 15 and 60 days of the determination of a complete application. ~~Staff shall schedule complete applications for formal internal review subject to the criteria in this section and any additional criteria required by the use.~~

(b) **Notice.** Prior to Review by the City Council the following ~~Notice~~ notice shall occur:

(1) **Posted Notice.** Prior to a recommendation, staff shall provide one sign for each road ~~front age~~ frontage indicating that there is a pending development application. The applicant shall ensure that this sign is posted on each road frontage on the property for at least seven (7) days prior to ~~the recommendation~~ City Council introduction. When the applicant has made all reasonable and good faith efforts to maintain posted notice, failure of this posted notice will not be grounds to invalidate the application.

(2) **Published Notice.** Notice shall be published in a newspaper of general circulation and posted to the City of Cheyenne website at least 15 days prior to City Council introduction indicating the general location of the property, the nature of the application, the

location for further information on that application, and the date, time and location of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required.

(3) Mailed Notice. All owners within 300' of subject property shall be mailed notice indicating the general location of the property, the nature of the application, the location for further information on that application, and the dates of City Council and City Council Committee consideration. Notice of resolution introduction and referral is not required. When mailed notice is properly addressed based on the latest property information and deposited in the mail at least 15 days prior to City Council introduction, failure of a party to receive such notice will not be grounds to invalidate any action taken.

(c) *Staff Recommendation.* Upon review according to the criteria in this section, and between 7 and 30 days of the determination of a complete application, the Director shall take one of the following actions and afterward place the application on the next available City Council agenda:

(1) Recommend approval of the application ~~and place on the next available City Council agenda; or~~

(2) Recommend approval of the application with specific conditions or modifications ~~and place on the next available City Council Agenda; or~~

(3) Recommend Denial of the application and state specific reasons for denial. ~~denial and place on the next available City Council Agenda.~~

3. *City Council Consideration.* The City Council shall consider the application in the form of a resolution. The City Council may approve, deny, or approve the application with reasonable conditions as deemed necessary to protect the public health, safety, and welfare and to ensure compliance with applicable City standards and requirements. ~~Approval and Acceptance. Upon recommendation of the Staff, the application shall be scheduled for approval by the City Council at the next regular meeting. At this meeting City Council shall review the application subject to the criteria of this section and criteria for the special use and:~~

~~(a) Approve the Special Use Permit;~~

~~(b) Approve the Special Use Permit with specific conditions or modifications. Conditions or modifications shall be:~~

~~(1) to better meet standards and review criteria; or~~

~~(2) to address situations created by or aggravated by the proposed application, and which conditions are roughly proportional to the impacts of the proposed development;~~

~~(c) Deny the Special Use Permit.~~

4. *Effect of Decision.* The decision of the ~~Governing Body is the final decision~~ City Council shall be final. Approval by the City Council shall be valid for a period not to exceed three years and shall terminate concurrently with the expiration of ~~the~~ any applicable license. Denial of the application shall bar any application for a

special use that is not substantially different for at least one year. Any application that has not established the Special Use within 1 year shall be void.

d. *Review Criteria.* In reviewing and making a decision on ~~the a~~ Special Use Permit, the ~~Governing Body and Staff~~ staff and City Council shall consider:

1. Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review.

2. Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use;

~~2.3~~ Whether the ~~The suitability of the subject property for the~~ use, compared with the suitability of the subject property for other uses permitted by right in the zoning district;

~~3.4~~ Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts;

~~4.5~~ The duration of the proposed Special Use relevant to the applicability requirements of ~~this section~~ the zoning district and adjacent zoning districts;

~~5.6~~ Whether any additional site-specific conditions associated with the application are warranted and sufficient to prevent any potential harm to the public health, safety or general welfare;

~~6. The review and recommendations of other reviewing bodies;~~

7. Whether the use is in conflict with other applicable regulations, including City, State or Federal regulations;

8. The adequacy of infrastructure supporting the site.

9. Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community. In this evaluation, City shall include not just operations within the City of Cheyenne.

Summary: 5.1.2 Zoning Districts Established

This section of the UDC identifies all zoning, special purpose and overlay districts of the City. This amendment adds the new RE Regional Entertainment Overlay District and recognizes others that have been omitted inadvertently in the past including the UU Urban Use and RUCAO – Restricted Use Control Area overlay districts.

Amendment Text:

<i>Rural and Agriculture Districts</i>	
AG	Agricultural
AR	Agricultural Residential
RR	Rural Residential
<i>Residential Neighborhood Districts</i>	
LR	Low-density Residential
MR	Medium-density Residential
HR	High-density Residential
NR-1	Neighborhood Residential - Moderate Density
NR-2	Neighborhood Residential – Medium Density
NR-3	Neighborhood Residential – High Density
<i>Commercial and Mixed-Use districts</i>	
NB	Neighborhood Business
CB	Community Business
CBD	Central Business District
MUR	Mixed-Use Residential Emphasis
MUB	Mixed-Use Business Emphasis
MUE	Mixed-Use Employment Emphasis
BP	Business Park
<i>Industrial Districts</i>	
LI	Light Industrial
HI	Heavy Industrial
<i>Special Purpose and Overlay Districts</i>	
P	Public District
PUD	Planned Unit Development
AD	Airport District
SS	Support Services
M	Military
AHR	Airport Height and Use Restrictions
CHR	State Capitol Height Restrictions
<u>RE</u>	<u>Regional Entertainment</u>
<u>RUCAO</u>	<u>Restricted Use Control Area Overlay District</u>
<u>UU</u>	<u>Urban Use Overlay District</u>

Summary: 5.1.4, Districts and Uses, (Table 5-1: Zoning District Uses)

The Use Table introductory language is amended to add “permitted after special use review” as a fourth review designation, alongside the existing permitted by right, administrative review, and conditional discretionary review categories. Language is also added clarifying that all uses, including those permitted by right, typically require site plans and building permits to be lawfully established. ‘Gaming Center’ is added as a Special Use in the CB - Community Business and CBD - Central Business District zoning districts.

‘Oil and Gas Support Services’ is added as a Special Use in the HI - Heavy Industrial district. ‘Oil and Gas Support Services’ presently is allowed as a special use in the HI District pursuant to 5.8.7 and modification to allow it in other zone districts would require other amendments to the UDC. Oil and gas support services include service for oil and gas drilling operations such as parking and storage of exploration, production or workover equipment, pipe and production equipment, equipment and storage yards for road and pipeline construction contractors and production unit setup.

Staff notes that overlay districts are not shown in the Use Table and the exceptions / restrictions / allowances are highlighted in the text of the respective overlay district section.

As a housekeeping item, columns related to Planned Unit Development (PUD), Military (M), Airport Height Restriction (AHR), and State Capitol Height Restrictions (CHR) are proposed for removal because they are not necessary in the Use Table.

Amendment Text:

5.1.4 Districts and Uses

Uses have been grouped in general categories, wherever possible. The categories are meant to allow discretion in determining permitted uses. Some uses are more specifically listed because of anticipated impacts associated with the use which warrant special treatment with respect to which district they are allowed in or special review procedures and standards that make the use compatible with certain districts. These cannot be included in the general categories and they require the approval process as indicated. Applicants and staff will need to work closely together in determining the appropriate category for a specific use.

Uses are allowed in various zoning districts as either “permitted by right” (P), “permitted after administrative review” (A), ~~or~~ “permitted after conditional discretionary review” (C), or “permitted as after special use review” (S) as indicated in Table 5-1. Uses, including those ‘permitted by right’, typically require site plans and building permits to be lawfully established. The procedures and general criteria for these reviews are included in Article 2.

Gaming Center has been added as a special use in the CB and CBD zoning Districts and Oil and Gas Support Services has been added as a Special Use in the HI zoning district. The PUD, M, AHR, and CHR district columns are to be deleted from the table, and

footnotes are to be updated accordingly. A draft Use Table showing the proposed amendments is attached.

Summary: 5.6.10, Regional Entertainment (RE) Overlay District (New)

A new Regional Entertainment (RE) Overlay District is created to encourage urban and infill development and support redevelopment in evolving and transitioning corridors within the City, leveraging proximity to regional destinations, major transportation corridors, and interchange areas. The district applies to four geographic subareas:

- The West 15th area bounded by the alley between 15th Street and Lincolnway Capitol Avenue the Union Pacific Railroad, and Bent Avenue; the Reed Rail Corridor.
- The Reed Rail Corridor applying to rail-adjacent properties within a defined box bounded by 23rd Street, Bent Avenue, the Union Pacific Railroad, and Snyder Avenue extended.
- The West Lincolnway corridor within 200 feet of each side of the right-of-way from Crow Creek to the corporate limits, with an absolute 350-foot depth limit.
- The High Plains Road Interchange, covering Interstate 25-adjacent properties within 3,000 feet of the High Plains Road centerline as measured along the interstate, with an absolute 2,500-foot depth limit from the interstate right-of-way. Boundaries for the High Plains interchange area are frozen as of adoption and are unaffected by any future realignment of either roadway.

All uses permitted in the underlying zoning district will remain allowed. Gaming Center will be an additional allowed use in the overlay district and development is subject to the underlying district's site and building design standards.

Also added to the RE Overlay as permitted uses are uses that closely follow the entertainment theme such as Bars and Liquor Stores; Restaurants; Entertainment, Venue (1000+ maximum occupancy); Entertainment, Amusement, Recreation, Other; Campground; and Recreational Vehicle Park. Staff notes that 'Lodging, hotels/motels' will still require a base zone allowing them to ensure they are developed in accordance with development standards.

Amendment Text:

5.6.10 Regional Entertainment (RE) Overlay District

- a. **Intent.** The Regional Entertainment (RE) Overlay District is intended to encourage urban and infill development and support redevelopment opportunities in evolving and transitioning corridors within the City. The district promotes development that leverages proximity to regional destinations, major transportation corridors, and interchange areas to attract visitors, support economic activity, and increase vitality across a range of urban contexts.

- b. **Applicability.** The RE Overlay District applies to the following areas:
1. West 15th. All lots, parcels, and tracts of land located completely or partially within the area bounded by the alley between 15th Street and Lincolnway on the north, Capitol Avenue on the east, the Union Pacific Railroad on the south, and Bent Avenue on the west.
 2. Reed Rail Corridor. All lots, parcels, and tracts of land adjacent to the Burlington Northern or Union Pacific Rail Line within the area bounded by 23rd Street on the north, Bent Avenue on the east, the Union Pacific Railroad on the south, and Snyder Avenue and an extension of Snyder Avenue south to its intersection with the Union Pacific Railroad on the west.
 3. West Lincolnway. All lots, parcels, and tracts of land lying within two hundred (200) feet of each side of the West Lincolnway right-of-way, from Crow Creek westward to the corporate limits of the City. The standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no instance shall the permitted use extend beyond three hundred and fifty (350) feet of the West Lincolnway right-of-way, as measured perpendicularly from said right-of-way line.
 4. High Plains Road Interchange. All lots, parcels, and tracts of land within the corporate limits of the City and adjacent to the Interstate 25 right-of-way and lying within 3,000 feet of the centerline of High Plains Road, as measured along the Interstate 25 right-of-way from said centerline. For purposes of determining adjacency, an intervening railroad right-of-way or State-owned land shall not be construed to break or interrupt adjacency to the Interstate 25 right-of-way. The standards, requirements, and regulations of the RE Overlay District shall apply to the entirety of any lot, parcel, or tract meeting the foregoing locational criteria; provided, however, that in no instance shall the permitted use extend beyond 2,500 feet of the Interstate 25 right-of-way, as measured perpendicularly from said right-of-way. Any subsequent relocation, reconstruction, or realignment of High Plains Road or Interstate 25 shall not alter the boundaries of the overlay district.
- c. **Context.** This district is most appropriate in areas with existing or future urban development patterns.
- d. **Permissible Uses.** All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1. Notwithstanding Table 5-1, Gaming Center; Bars and Liquor Stores; Restaurants; Entertainment, Venue (1000+ maximum occupancy);

Entertainment, Amusement, Recreation, Other; Campground; and Recreational Vehicle Park shall be a Permitted Use within the RE Overlay District.

- e. **Site and Building Design Standards.** All uses shall be subject to the development standards of the underlying zone district.

Summary: 5.7.13, Gaming Center Development Standards (New)

A new development standards section is created for Gaming Centers. In the Community Business and Central Business District zones, a Gaming Center must be located at least 500 feet from any elementary or secondary school, child care center operating as the sole primary use of an independent structure, place of worship, or public park or recreation facility, measured in a straight line from the nearest exterior wall of the Gaming Center. The use must also be adjacent to a collector, minor arterial or principal arterial street, though direct access is not required. Within the RE Overlay District, Gaming Centers located in the Reed Rail Corridor must orient their primary pedestrian entrance toward the corridor, with exceptions available through the Administrative Adjustment process where conditions make such orientation unreasonable.

Amendment Text:

5.7.13 Gaming Centers

In districts where a Gaming Center is allowed, a Gaming Center shall meet the following standards in addition to all other lot and building standards for the underlying district.

- a. In Community Business – CB and Central Business District – CBD:
 - 1. Be located five a minimum of hundred (500) feet from any elementary or secondary school, child care center operating as the sole primary use of an independent structure, place of worship, or public park or recreation facility. Measurement shall be made in a straight line, without regard to intervening structures or streets, from the nearest exterior wall of the premises or structure housing the off-track betting facility to the nearest exterior wall of the primary structure of a place of worship, school, or child care center, or to the nearest property line of a public park or recreation facility.
 - 2. Be adjacent to a Collector, Minor Arterial, or Principal Arterial street. Access to a Collector, Minor Arterial, or Principal Arterial street is not required.
- b. In the RE Overlay District:
 - 1. For properties developed within the Reed Rail Corridor, the primary pedestrian entrance to the Gaming Center shall be oriented toward the Reed Rail Corridor. Exceptions may be approved through the Administrative Adjustment process if the Director finds that a pedestrian

entrance oriented toward the Reed Rail Corridor cannot be reasonably accommodated due to conditions specific to the property.

ANALYSIS OF CONFORMANCE WITH REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

PlanCheyenne broadly supports a Regional Entertainment Zoning District for historic horse racing and destination entertainment through several overlapping themes. The plan's Foundation 3, Fostering a Vital Economy and Activity Centers calls for economic diversification away from heavy reliance on government employment, while also emphasizing the need to capture retail spending and related tax dollars. A destination entertainment district drawing out-of-state visitors would directly address both concerns. The plan also frames Cheyenne as the "northern anchor" of the Front Range economy, noting that the city should work on attracting visitors and their related spending. The proposed overlay districts are located in areas that are easily accessible to out-of-town visitors.

Because historic horse racing terminals were not yet legal in Wyoming when the plan was written, the plan's own amendment procedures provide the pathway forward. The plan expressly allows amendments for uses that are beneficial to the community or address issues not foreseen during the planning process and creating these regulations and an overlay district effectively does that. Foundation 7's emphasis on fiscal responsibility and new development paying its fair share also favors a high-revenue, relatively low-infrastructure-cost entertainment use over alternatives like residential sprawl. These facilities, when located in the City, provide an avenue for revenue. Presently Historic Horse Racing ranks 5th in City revenue and makes up 4.74% of the City's general fund budget.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. (The following Articles are all listed verbatim from Wyoming State Statute)

From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

WY 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

(a) The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

....

(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code to provide additional local land use control of specific uses within the City, which is authorized by state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would promote the general health, safety, and public welfare of Cheyenne by encouraging Gaming Centers to locate in regionally accessible destination areas that are evolving and growing within the community. Concentrating these uses within four identified overlay districts helps direct higher intensity commercial activity to areas with appropriate transportation access, infrastructure, visibility, and separation from established neighborhoods and sensitive land uses. This approach provides greater predictability for residents, supports orderly development patterns, and reduces the potential for land use conflicts.

The amendment also allows the Governing Body to review proposed Gaming Centers outside of the overlay districts on a case by case basis to evaluate neighborhood compatibility, site design, traffic impacts, operational characteristics, and surrounding land uses. The public hearing process ensures nearby property owners and residents are notified in advance and provided an opportunity to comment before decisions are made. This balanced approach promotes transparency, local oversight, and thoughtful placement of Gaming Centers while still allowing reasonable economic development opportunities within the community.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

A public hearing regarding this proposed text amendment was advertised for the March 2, 2026, meeting. This item has been continued to subsequent meetings (April 4, 2026; May 4, 2026, and May 18, 2026). No comment has been made at the meetings and no one has contacted staff regarding this proposed amendment and its related postponement.

As of the publication of the Staff Report (May 11, 2026), Staff has received no inquiries or comments from the public on this project.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.4.1.d.

ALTERNATIVES:

1. Recommend approval of the Text Amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Text Amendment subject to conditions or modifications.
3. Recommend denial of the Text Amendment based on findings of denial. The Planning Commission must conclude that the project does not meet at least one of the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Text Amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of text amendments to the Unified Development Code amending the Unified Development Code (UDC) amending UDC sections 1.3.11 Nonconformities; 1.4.4 Definitions; 1.4.5 Interpretation of Zoning Map; 2.2.7 Special Use Approval; 5.1.2 Zoning Districts Established; and 5.1.4 Use Table; and creating 5.6.10 Regional Entertainment (RE) Overlay District) and 5.7.13 Gaming Center Development Standards as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. Proposed Amendments to the Use Table

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Residential Uses																									
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P				
Cottage Lots				C	C	C	C	P	P			P				P	P				P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P				
Dormitories					C	A						P				P	P				P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P				
Live/Work					C	P		C	A	P	P	P				P	P	P	C		P				
Mixed-use Dwelling										P	P	P				P	P	P	C		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P				
Urban Loft Building									C	P	C	C				C	P				P				
Manufactured housing parks		C		C	C	C															P				
Civic Uses																									
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A	C		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A	C		P				
Cemeteries	A									A	A	P	C		C	A	A	A			P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A	C		P				
Educational facilities											P	P			P		A	A	C		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A	P		P				
Developed Athletic Field or Stadium											C		C		C		C	C	P		P				
Service Uses																									
Service Business - Limited										P	P	P				A	P	P	P		P				
Service Business - General										C	P	P				C	C		P		P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P				
Animal Care - Kennel	P	C									P		P						P		P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C				P				
Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P				
Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P				
Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P	P		P				
Emergency Shelter											P		C												
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P	P		P				

Planned District—uses subject to a development plan

Federal Property—No City authority over uses

Overlay District—uses subject to base zoning district

Overlay District—uses subject to base zoning district

P = Use permitted by right A = Use permitted after administrative review C = Use permitted after conditional discretionary review
 S = Use permitted after special use review (blank = prohibited use)

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Services Uses (cont.)																									
Entertainment, Outdoor Recreation Facility	C	C	C	C	C	C	C	C	C	C	C	A	C	C	A	C	C	C	P		P				
Entertainment, Venue (1000+ maximum occupancy)	C	C	C								A	A	C		A		C	C	P		P				
Entertainment, Amusement, Recreation—Other	C	C	C								C	P	C	C	C		C	C	C		P				
Gaming Center											S	S													
Lodging, Bed and Breakfast	P	A	A	C	C	C	C	A	P							P	P	P			P				
Lodging, Hotel / Motel											P	P					P	P	P		P				
Campground	C	C											P						C		P				
Recreational Vehicle Park	C	C											P						C		P				
Medical Care, Clinic and Office										P	P	P				C	P	P	P		P				
Medical Care, Hospital															P			P	P		P				
Mini Storage					C	C					P	C	P	P		C	C	P							
Storage, Yard													C	P					C		P				
Employment Uses																					P				
Home occupations	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P		P				
Office – Limited (<3,500)					C	A		C	A	P	P	P	P	P		P	P	P	P		P				
Office – general (3,500 – 20K)						C				C	P	P	P	P		A	P	P	P		P				
Office – Major Office Complex (>20K)											P	P	P	P			P	P	P		P				
Commercial Uses																									
Convenience Retail / Corner Store (<2k)										P	P	P	P			A	P	P	P		P				
Neighborhood Retail (2K - 5K)										P	P	P	P			A	P	P	P		P				
General Retail (5K - 25K)											P	P	P				P	A	P		P				
Large-scale Retail (25K - 100K)											P	P	P				P	C	P		P				
Warehouse Retail (> 100K)											P	P	P				P		P		P				
Grocery Store <45K										P	P	P	P				P	P	P		P				
Supermarket > 45K											P	P	P				P	C	P		P				
Outdoor Sales, Limited										A	P	A				A	A	A	C		P				
Outdoor Sales, Seasonal										C	A	C				C	C	C	C		P				
Outdoor Sales, Event or Display Area										C	A	C				C	C	C	C		P				
Outdoor Sales											C		C	C			C		C		P				
Bars and liquor stores										C	C	P			A		C	C		P	P				
Automobile Service Repair										C	P	C	P	P			C	C	P		P				
Automobile Service Station - Limited										C	P	C	P	P			C	C	P	P	P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

Overlay District – uses subject to base zoning district

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	BP	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																									
Commercial Uses (cont.)																									
Automobile Service Station - General											P	C	P	P				C	P		P				
Automobile Service Station – Large-scale											C		C	P					P		P				
Food Service – Limited (under 2K)										P	P	P				P	P	P	P	P	P				
Food Service – General (2K – 4K)										C	P	P					P	P	P	P	P				
Food Service – Large-scale (over 4k)											P	P					P	P	P		P				
Industrial Uses																									
Data Center										C	C	C	P	P			C	P	P						
Limited Industrial										A	A	P	P	P	P	A	P	P	P		P				
Moderate Industrial												C	P	P			C	P	P		P				
General Industrial													C	P					P		C				
Industrial														C					C		C				
Limited Outdoor Storage													P	P	C			A	P		C				
Outdoor Storage													C	P				C			C				
Impoundment Yards													P	P			C	C			C				
Salvage yards													C	C							C				
Junk yards														C							C				
Air cargo terminals																				P	C				
Aircraft sales, repair, service, storage and relating uses																				P	C				
Railroad yards and maintenance buildings													P	P					P		C				
Oil and Gas Support Services														S											
Public Service Uses																									
Commercial and Public Parking Facility												P			P		P	P	P		P				
Government Facility										P	P	P	P	P	P	P	P	P	P	P	P				
Military																				P	P				
Recycling Services											C		P	P			C	C	C		P				
Transportation facilities											C		P	P	P				P	P	P				
Utility Stations	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	A	P				
Agriculture Uses																									
General Agriculture	P																			P	P				
Limited Agriculture	P	P																		P	P				
Agricultural equipment or product sales	C																				P				
Commercial stables, arenas, and show barns	C	C																			P				
Nurseries, landscaping	P	P									C		P	P			C				P				

Planned District – uses subject to a development plan

Federal Property – No City authority over uses

Overlay District – uses subject to base zoning district

Overlay District – uses subject to base zoning district